

26VECV01058 26VECV01058

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F06%2F2026

Source SHA-256: c39c25ae70c527b3b25e25a4b85d8ccc9ed02caa8e0d2c5edb0779b842fe15e7

Case Number: 26VECV01058 Hearing Date: July 6, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JULLYELSA “JULIE” MARQUES DE FRANCA, an individual,

Plaintiff,

vs.

ASHIM KUMAR, M.D., an individual; WESTERN FERTILITY INSTITUTE, LLC, a California limited liability company; AND DOES 1 THROUGH 50, INCLUSIVE.

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 26VECV01058

ORDER SUSTAINING IN PART DEFENDANTS' DEMURRER WITH LEAVE TO AMEND

ORDER GRANTING IN PART DEFENDANTS' MOTION TO STRIKE

I. BACKGROUND

Plaintiff Julyyelsa "Julie" Marques De Franca ("Plaintiff") filed this medical negligence action against Defendants Ashim Kumar, M.D. ("Kumar") and Western Fertility Institute LLC ("Western Fertility") (jointly, "Defendants"). Plaintiff alleges Defendants used false financial promises to lure her to Los Angeles for the harvesting of her eggs without her informed consent or conducting mental health screenings.

Defendants demurrer to the Complaint.

II. PROCEDURAL HISTORY

On February 20, 2026, Plaintiff filed a Complaint alleging (1) Medical Battery; (2) Professional Negligence (Medical Malpractice); (3) Negligence – Failure To Obtain Informed Consent; (4) Sexual Battery (Civ. Code § 1708.5); (5) Human

Trafficking (Civ. Code § 52.5; Pen. Code § 236.1); (6) Unruh Civil Rights Act (Civ. Code §§ 51, 52); (7) Fraud; (8) Breach Of Oral Contract; And (9) Unfair Competition (Bus. & Prof. Code § 17200 Et Seq.)

On May 28, 2026, Defendants filed the instant Demurrer and Motion to Strike.

On June 22, 2026, Plaintiff filed her Oppositions.

On June 26, 2026, Defendants filed their Replies.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendants complied with their statutory obligation to meet and confer by telephone. (See Declaration of Jessica Chang filed May 28, 2026, ¶¶ 5, 7.)

IV. DEMURRER

A. Legal Standard

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "A demurrer tests the sufficiency of a complaint as a matter of law." (Durell v. Sharp Healthcare, (2010) 183 Cal.App.4th 1350, 1358.) "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court, (1986) 180 Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits. (See Barnett v. Fireman's Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Analysis

1. First Cause of Action for Medical Battery

Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery. (See *Cobbs v. Grant* (1972) 8 Cal. 3d 229, 239.) However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. (See *id.*, 8 Cal. 3d at 240-241.) In that situation, the action should be pled in negligence. (See *id.*, 8 Cal. 3d at 241.)

Defendants argue the Complaint pleads Plaintiff's voluntary and affirmative act to undergo egg donation procedures, not that Defendants performed a substantially different medical procedure than the one to which she consented. (See Dem. at 10:22-25.) Defendants also argue Plaintiff's claim of medical battery should be resolved through her negligence claim because her battery claim is based on a lack of informed consent. (See *id.*, at 11:12-22, citing *Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324 and *Cobbs*, 8 Cal.3d at 240.)

Plaintiff argues whether she consented or whether her consent was valid are questions of fact, unresolvable on demurrer. Plaintiff also argues any consent was invalidated because of Defendant's failure to disclose an inherent complication with a high degree of probability. (See *id.*, at 4:27-28, citing *Cobbs*, 8 Cal.3d 229, 240.) Plaintiff also argues her consent was invalidated by economic duress and Defendants' fraud in concealing Plaintiff's severe pre-existing mental illness would disqualify her as an egg donor. (See *id.*, at 5:9-6:14.)

Defendants argue Plaintiff fails to identify what specific complication allegedly carried a risk of complication with a high degree of probability. (See Reply at 3:1-7.) Defendants also argue Plaintiff fails to invalidate consent based on fraud because the alleged misrepresentations concern compensation, not the nature of the medical procedures performed. (See *id.*, at 3:8-13.)

Here, the Complaint alleges the following procedures were conducted without Plaintiff's consent: "April 28, 2025 and May 2, 2025 transvaginal ultrasounds; 200 mg Orilissa (prescribed to be taken twice a day), and; injections of unknown substance (prescribed to be taken daily)." (Compl., ¶¶ 12, 70.) Plaintiff alleges she consented to none of these medical treatments because they were all conducted under coercive circumstances. Plaintiff alleges she was coerced because Western Fertility controlled all financial and housing support for Plaintiff while she was in the United States and she was dependent on receiving the compensation promised by Western Fertility. (See *id.*, ¶¶ 42, 71-73, 75.) Plaintiff also alleges on April 28, 2025, Kumar cancelled Plaintiff's agreement, hotel, and told her she was "on her own" until her May 11, 2025, return flight to Brazil. (See *id.*, ¶ 10.) The Complaint attaches emails from Lin Lin, Western Fertility's regional manager, informing Plaintiff to return to Brazil. (See *id.*, ¶ 18, Ex. 8.)

The Court finds Plaintiff fails to state a claim for medical battery and agrees with Defendants this claim as plead, at most, alleges negligence. Though Plaintiff alleges the medical procedures were performed without her informed consent, Plaintiff alleges she consented to the vaginal ultrasound, medication, and daily injection as she voluntarily presented herself to Defendants to commence these procedures. (See *id.*, ¶¶ 8, 10, 12, Ex. 8 at 10-11.)

Plaintiff's allegations do not sufficiently allege coercion to invalidate consent. Plaintiff's allegations do not lead to a reasonable inference she was faced with no reasonable alternative but to continue to subject herself to egg donor medical procedures. (See *Myerchin v. Family Benefits, Inc.* (2008) 162 Cal.App.4th 1526, 1539 [describing economic duress as "a wrongful act which is sufficiently coercive to cause a reasonably prudent person faced with no reasonable alternative to succumb to the perpetrator's pressure." (internal quotation omitted)].) Plaintiff alleges Defendants cancelled her hotel reservation on April 28, 2025, but not her May 11, 2025, return flight. Though Plaintiff alleges she was dependent on Western Fertility's provision of her financial and housing accommodations while she was in the United States, Plaintiff does not allege after they cancelled her agreement and hotel stay, Defendants agreed to give her an advance payment, pay her a daily stipend, or pay for her hotel stay if she resumed egg donor procedures. Moreover, Exhibit 8 shows Plaintiff requested to continue the medical procedures, that Plaintiff had \$1,000 in food allowance, and that Plaintiff had her return flight to Brazil. (See Ex. 8 at 10-11.) These facts take precedence over contradictory allegations she was coerced into receiving the medical procedures for egg donor retrieval. (See *Fox Paine & Co., LLC v. Twin City Fire Ins. Co.* (2024) 104 Cal.App.5th 1034, 1045 [facts appearing in exhibits attached to the complaint are given precedence over inconsistent allegations in the complaint].) Thus, Plaintiff does not allege she had no reasonable alternative to continuing to undergo egg donor procedures.

The Court is also unpersuaded by Plaintiff's argument that any consent was invalidated by Defendants' failure to disclose an inherent complication with a high degree of probability and that therefore her battery claim is appropriate. Cobbs states "When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence." (Cobbs, 8 Cal.3d 229, 240 [emphasis added].) Based on this, Plaintiff argues where a complication with high probability occurs, there can be no consent, and an intentional tort claim is appropriate. We disagree with Plaintiff's reading and interpret the cited portion Plaintiff relies on as the Supreme Court's description of the specific facts in that case: the plaintiff experienced low probability events inherent to the operation. (See *id.*, 8 Cal.3d at 241.) Cobbs holds that where a potential complication and known material risk that was undisclosed occurs, this is an issue of informed consent and should be treated as negligence; battery is reserved for cases where there was no general consent at all to a medical procedure. (See *id.*, 8 Cal.3d at 239-241, 245 ["when an undisclosed potential complication results, the occurrence of which was not an integral part of the treatment procedure but merely a known risk, the courts are divided on the issue of whether this should be deemed to be a battery or negligence...the trend appears to be towards categorizing failure to obtain informed consent as negligence...We agree with the majority trend."].) Thus, the Court finds at most, Plaintiff alleges negligence on these facts.

Finally, Plaintiff does not allege any procedure performed did not constitute egg donor retrieval procedures such that the Court can reasonably infer Defendants performed a treatment to which Plaintiff did not consent. (See Cobbs, 8 Cal.3d at 240; *So v. Shin* (2013) 212 Cal.App.4th 652, 669 [whether the contact between plaintiff and defendant was within the scope of plaintiff's consent is a factual question because "consent to surgery necessarily encompasses consent to postoperative care, not all postoperative contact between doctor and patient constitutes care"].)

Accordingly, the Court SUSTAINS Defendants' Demurrer to the first cause of action for medical battery WITH LEAVE TO AMEND.

2. Third Cause of Action for Negligence - Failure to Obtain Informed Consent

To state a claim for negligence, Plaintiff must allege the elements of (1) the existence of a legal duty of care, (2) breach of that duty, and (3) proximate cause resulting in an injury. (See *McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) "[A] physician has a fiduciary duty to disclose all information material to the patient's decision," when soliciting a patient's consent to a medical procedure. A cause of action premised on a physician's breach of this fiduciary duty may alternatively be referred to as a claim for lack of informed consent." (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1164.) "There must be a causal relationship between the physician's failure to inform and the injury to the plaintiff. Such causal connection arises only if it is established that had revelation been made consent to treatment would not have been given." (Cobbs, 8 Cal.3d at 245.)

Defendants argue the Complaint fails because it does not identify the specific medical procedure, the specific undisclosed risk that was material, and facts showing a reasonable person in Plaintiff's position would have declined the procedure if properly informed. (See Dem. at 12:4-5.) Defendants also argue the Complaint fails to allege a causal relationship between any nondisclosure and Plaintiff's injuries.

Plaintiff argues she sufficiently alleges Defendants failed to inform her of the risks pertinent to mental illness and that the medical procedures caused her to suffer allergic reactions and worsened mental illness. (See Opp. at 7:3-25.)

In reply, Defendants argue Plaintiff cannot state her claim for lack of informed consent because she alleges they lacked information regarding her mental health. (See Reply at 3:20-22.) Defendants reassert Plaintiff does not identify a particular undisclosed risk that materialized and caused her alleged injuries. (See *id.*, at 3:23-24.)

The Court finds Plaintiff's third claim for lack of informed consent is sufficiently alleged. Here, the Complaint alleges Defendants failed to disclose egg donor retrieval procedures could exacerbate mental illness and the associated risks with

the medication and injections Plaintiff received. (See Compl., ¶¶ 12, 33, 95.) The Complaint also alleges Defendants failed to communicate with Plaintiff in a language she could understand. (See id., ¶ 96.) Plaintiff alleges because of this lack of informed consent, Plaintiff suffered allergic reactions and exacerbated mental illness. (See id., ¶ 99.) Plaintiff alleges a reasonable person in her position would not have agreed to the procedures if adequately informed. (See id., ¶ 97.) The Court finds Plaintiff sufficiently alleges lack of informed consent.

The Court OVERRULES Defendants' Demurrer to the third cause of action for negligence – lack of informed consent.

3. Fourth Cause of Action for Sexual Battery

Civil Code § 1708.5 describes sexual battery occurs where (1) the perpetrator engages in one of several types of proscribed intentional acts, (2) "sexually offensive contact with [the victim] results", and (3) the victim did not consent.

The three types of proscribed acts are:

(1) acting with the intent to cause a harmful or offensive contact with an intimate part of another;

(2) acting with the intent to cause harmful or offense contact with another by use of [the perpetrator's] intimate part; and

(3) acting to cause an imminent apprehension of (1) or (2), and a sexually offensive contact with the victim directly or indirectly results.

(Civ. Code, § 1708.5.)

"A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a 'harmful or offensive' contact and the batteree suffer a 'sexually offensive contact.' Moreover, the section is interpreted to require that the batteree did not consent to the contact." (Angie M. v. Superior Ct. (1995) 37 Cal.App.4th 1217, 1225 [internal citation omitted].)

Defendants argue Plaintiff fails to plead Kumar's intent to cause harmful or offensive contact. Defendants also argue the only contact with Plaintiff's intimate part was through the transvaginal ultrasounds and Plaintiff does not plead that she did not consent to this procedure. (See Dem. at 12:26-27, 13:7-16; Reply at 4:11-15.)

Plaintiff argues she alleges Defendants cause harmful or offensive contact with her sexual organs through transvaginal procedures. (See Opp. at 8:19-20.)

The Court finds the claim is insufficiently alleged. Plaintiff fails to plead Kumar intended to cause harmful or offensive contact with Plaintiff's sexual organs. (See Compl., ¶ 103.) The Complaint alleges her consent was invalidated due to it being procured under coercive circumstances. (See id.) However, as stated above, the Court found Plaintiff consented to the procedures, and contact with her sexual organs, by voluntarily presenting herself to Kumar and seeking to continue treatment; and Plaintiff insufficiently alleged she was coerced to do the same.

The Court SUSTAINS Defendants' Demurrer to the fourth cause of action for sexual battery WITH LEAVE TO AMEND.

///

///

///

4. Fifth Cause of Action for Human Trafficking Civil Code Section 52.5

Civil Code § 52.5 provides “A victim of human trafficking, as defined in Section 236.1 of the Penal Code, may bring a civil action for actual damages, compensatory damages, punitive damages, injunctive relief, any combination of those, or any other appropriate relief.” (Civ. Code § 52.5(a).) Penal Code § 236.1(a) provides “(a) A person who deprives or violates the personal liberty of another with the intent to obtain forced labor or services, is guilty of human trafficking...” “‘Deprivation or violation of the personal liberty of another’ includes substantial and sustained restriction of another’s liberty accomplished through force, fear, fraud, deceit, coercion, violence, duress, menace, or threat of unlawful injury to the victim or to another person...” (Id., § 236.1(h)(3).) “‘Coercion’ includes a scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; the abuse or threatened abuse of the legal process; debt bondage; or providing and facilitating the possession of a controlled substance to a person with the intent to impair the person’s judgment.” (Id., § 236.1(h)(1).)

Defendants argue Plaintiff fails to allege coercion or deprivation of liberty within the meaning of Penal Code § 236.1. (See Dem. at 14:1-8.) Defendants argue Exhibit 8 to the Complaint shows Defendants assisted Plaintiff in returning home safely and early when she requested. (See id., at 14:6-6.)

Plaintiff argues she alleges deprivation of liberty based on her allegations that she was lured to the United States to undergo egg donor procedures and suffered adverse reactions to these procedures. (See Opp. at 9:26-23.)

Defendants argue Plaintiff does not allege coercion because she fails to allege Defendants knew she possessed an insufficient number of eggs or otherwise would not qualify as an egg donor. (See Reply at 5:1-7.)

The Court finds Plaintiff fails to state a claim for human trafficking as she fails to allege her personal liberty was violated. Here, the Complaint alleges “Defendants violated [Plaintiff’s] liberty by taking steps to harvest her eggs with extremely reduced or no compensation...Defendants recruited [Plaintiff]...using false promises of compensation and support, then used coercion—including isolation, cancellation of housing, financial dependence, deadline pressure, and threats of arrest and immigration consequences to obtain [Plaintiff’s] labor and services in connection with egg donation and related medical procedures.” (Id., ¶ 109.)

The Court finds the facts in Exhibit 8 show Defendants did not deprive Plaintiff of her liberty as she was permitted and urged to return to her home country after Defendants cancelled Plaintiff’s treatment for her failure to show up to an appointment. (See Compl., Ex. 8 at 8.) Western Fertility’s regional manager wrote in an email, “we cancelled you on the first day, by then, you would be getting a free trip to LA, free hotel for few days, and we are paying for you to change your flight. You also would go home with \$1000 in food allowance. You then reached out to your agency and explained...you would even do it for \$ 3000. You are the one who offered the price to us, because we were just going to cancel the cycle... Dr. Kumar agreed to continue even though he knows he might not be able to get many useful eggs from this cycle. Then you just decided to not show up yesterday... My understanding is that Marcia sent you \$500 two days ago. That is for you to change your flight.” (Compl., Ex. 8 at 11.) These facts take precedence over the Complaint’s contradictory allegations Defendants restricted Plaintiff’s liberty by coercion or otherwise. Thus, Plaintiff fails to state a claim for human trafficking.

The Court SUSTAINS Defendants’ Demurrer to the fifth cause of action for human trafficking WITH LEAVE TO AMEND.

5. Sixth Cause of Action for Unruh Civil Rights Act

Civil Code § 51, known as the Unruh Civil Rights Act, states: “All persons within the jurisdiction of this state are free and equal, and no matter what their ... disability ... are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” (Civ. Code § 51(b).) Unruh broadly outlaws arbitrary discrimination in public accommodations. (Jankey v. Lee (2012) 55 Cal.4th 1038, 1044.) A Plaintiff seeking to establish a case under the Unruh Act must plead and prove intentional discrimination in public accommodations. (Koebke v. Bernardo Heights Country Club (2005) 36 Cal.4th 824, 854.)

The essential factual elements of a cause of action for a violation of the Unruh Civil Rights Act are: (1) defendant denied, aided or incited a denial of, discriminated or made a distinction that denied full and equal accommodations, advantages, facilities, privileges, or services to plaintiff; (2) that a motivating reason for defendant's conduct was its perception of plaintiff's sex, race, color, religion, ancestry, national origin, disability, medical condition, or other actionable characteristic; (3) that plaintiff was harmed; and (4) that defendant's conduct was a substantial factor in causing plaintiff's harm. (See Belton v. Comcast Cable Holdings, LLC (2007) 151 Cal.App.4th 1224, 1238.)

Defendants argue Plaintiff fails to allege Defendants' conduct constituting discriminatory conduct or Defendants denied her full and equal accommodations. (See Dem. at 15:1-3.) Defendants also argue the Complaint fails to allege Defendants' conduct was motivated by Plaintiff's alleged protected class because Plaintiff alleges Defendants were unaware of Plaintiff's mental illness. (See id., at 15:9-19.)

Plaintiff argues the Complaint alleges Defendants exploited her vulnerabilities and left her unassisted when she suffered adverse reactions to medication. (See Opp. at 11:15-20.)

The Court finds Plaintiff fails to state her Unruh Act claim. The Complaint makes conclusory allegations that “Defendants denied Ms. Franca full and equal accommodations...and subjected Ms. Franca to poor conditions because of her national origin, language barriers, and disability-related vulnerability...” (Compl., ¶ 120.) There are no allegations from which the Court can infer that Plaintiff was denied full and equal access to accommodations or that any denial was motivated by Defendants' perception of Plaintiff's protected class. On the contrary, Plaintiff alleges she presented at Western Fertility to undergo egg retrieval procedures and was not turned away. (See Compl., ¶ 45, 47, 51, Ex. 8 at 11 [Western Fertility's regional manager stating Defendants performed an ultrasound and agreed to continue Plaintiff's cycle after cancelling Plaintiff's agreement on the first day].) Exhibit 8 also alleges Defendants cancelled Plaintiff's continued treatment cycle because she did not show up to her appointment, which interrupted her medication schedule. (See Ex. 8 at 8, 11.) Thus, Plaintiff fails to state her Unruh Act claim.

The Court SUSTAINS Defendants' Demurrer to the sixth cause of action for Unruh Civil Rights Act WITHOUT LEAVE TO AMEND.

6. Seventh Cause of Action for Fraud (Intentional Misrepresentation; Promissory Fraud; Concealment)

“The elements of a cause of action for intentional misrepresentation are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) actual and justifiable reliance, and (5) resulting damage.” (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1166.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (See Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (See Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

“[I]n a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false. To sufficiently plead the first requirement, that the defendant made a promise, the complaint must state facts which show how, when,

where, to whom, and by what means the representations were tendered. As for the second requirement, the falsity of that promise is sufficiently pled with a general allegation the promise was made without an intention of performance.” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060 [cleaned up, emphasis in original].) “An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a [written] contract.” (Austin v. Medicis (2018) 21 Cal.App.5th 577, 588.)

Defendants argue Plaintiff fails to allege a claim for intentional misrepresentation because the Complaint fails to allege the misrepresentations with specificity or facts demonstrating knowledge of falsity and intent to induce reliance. (See Dem. at 17:2-11.) Defendants also argue Plaintiff cannot convert her medical malpractice claim into one for fraud. (See id., at 17:12-19, citing *Stone v. Foster* (1980) 106 Cal.App.3d 334, 347 [“The same policy factors which favor treatment as negligence rather than battery also favor treatment as negligence rather than fraud”] and *Tell v. Taylor* (1961) 191 Cal.App.2d 266, 271 [where malpractice and deceit claims were based on same facts, even though plaintiff alleged “false representations on the part of the physician or fraudulent concealment, our courts have always treated the action as one for malpractice”].) Second, Defendants argue Plaintiff fails to allege a promissory fraud claim for lack of specificity and because allegations Defendants cancelled the agreement does not constitute Defendants’ intent to deceive. (See Dem. at 18:11-12.)

Third, Defendants argue Plaintiff fails to allege a claim for fraudulent concealment because the Complaint does not allege any material fact Defendants concealed or intended to defraud Plaintiff. (See id., at 19:3-10.) Fourth, Defendants argue Plaintiff lacks standing to bring a fraud claim on behalf of prospective parents. (See id., at 20:2-3.)

Plaintiff argues public policy does not prohibit fraud claims in the medical malpractice context. (See Opp. at 11:25-26.) Plaintiff argues Defendants concealed the following: (1) persons with a history of mental illness, like Plaintiff, are not candidates for egg donations; (2) the side effects of the medication and that Defendants would not provide medical treatment for side effects; and (3) Defendants would cancel the agreement if Plaintiff did not have 18 eggs. (See id., at 13:1-5.)

In reply, Defendants argue Plaintiff cannot base her fraud claim on the theory that Defendants concealed the risk of exacerbating mental illness because she alleges Defendants never conducted a mental health screening. (See Reply at 6:12-16.) Defendants also argue Plaintiff cannot plead intent to defraud because Plaintiff fails to allege Defendants knew Plaintiff could not qualify as an egg donor before she traveled to California. (See id., at 6:17-19.)

The Court finds Plaintiff insufficiently states a claim for promissory fraud and intentional misrepresentation because the Complaint fails to plead damages resulting from the alleged misrepresentation concerning compensation. Here, the Complaint alleges Defendants made a misrepresentation, knowledge of falsity, and intent to induce action. The Complaint pleads “[Defendants] intended to induce [Plaintiff] to come to the United States to donate her eggs with false promises [that she would receive a maximum payment of \$10,000 but not less than \$8,000, plus airfare, a fourteen-day hotel stay, and per diem, including \$1,000 for food and ground transportation]. Moreover, [Defendants] had no intention of fulfilling their promise and simply intended to get [Plaintiff] to United States and pressure her into taking less than the original agreed upon compensation....” (Compl., ¶¶ 5 and 35 [pleading when, to whom, and by what means the representations were tendered], 42, 125; Beckwith, 205 Cal.App.4th at 1060 [“by sufficiently pleading [defendant’s] promise was false at the time she made it, [plaintiff] also sufficiently pled the element of scienter.”].)

Plaintiff pleads she justifiably relied on the promise of compensation in traveling to California to commence egg donor procedures. (See Compl., ¶¶ 34-35, 126.) However, Plaintiff does not plead damages resulting from Defendants’ failure to compensate her. The Complaint pleads “Only after [Plaintiff] checked in did Monique disclose, for the first time, that [Plaintiff] had to produce eighteen (18) eggs to obtain the promised \$10,000 plus expenses and Per Diem. Monique did not disclose that Defendants would cancel the agreement and support if [Plaintiff] did not meet that threshold.” (Compl., ¶ 42.) Plaintiff does not allege damages resulting from the cancellation of her agreement. Thus, Plaintiff fails to state a claim for promissory fraud and intentional misrepresentation.

Plaintiff’s fraud claim rests on the same allegations as her negligence – failure to obtain informed consent claim as it also alleges Defendants’ concealment of potential risks including exacerbation of mental illness and allergic reactions to medication. (See Compl., ¶¶ 88-89.) The Supreme Court in *Cobbs* held where a defendant-physician fails to disclose a potential complication that was a known risk, this is an action that sounds in negligence rather than battery. (See *Cobbs*, 8

Cal.3d at 239-240.) The Stone Court held, “[t]he same policy factors which favor treatment as negligence rather than battery also favor treatment as negligence rather than fraud.” (Stone, 106 Cal.App.3d at 347.) Accordingly, Plaintiff insufficiently states a fraudulent concealment claim because it is based on Defendants’ failure to disclose risks of the egg donor procedure. Additionally, Plaintiff cannot assert a fraud claim on behalf of prospective parents.

The Court SUSTAINS Defendants’ Demurrer to the seventh cause of action for fraud WITH LEAVE TO AMEND.

7. Ninth Cause of Action for Unfair Competition

To set forth a claim for a violation of Business and Professions Code § 17200 (“UCL”), Plaintiff must establish Defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (See Bus. & Prof. Code, § 17200.) “Proposition 64 amended the UCL to provide a standing requirement for persons seeking relief under the UCL: a person bringing an action under the UCL must establish that he or she ‘has suffered injury in fact and has lost money or property as a result of the unfair competition.’” (Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235; see also Gray v. Dignity Health (2021) 70 Cal.App.5th 225, 237.)

Defendants argue Plaintiff fails to allege any of a UCL claim’s three prongs and that Plaintiff does not have standing to bring a UCL claim on behalf of prospective parents. (See Dem. at 20:15-21:11.)

Plaintiff argues she sufficiently pleads the unlawful and fraudulent prongs. (See Opp. at 13:24-14:23.)

Defendants argue because her human trafficking, sexual battery, fraud, and Unruh Act claims fail, the derivative UCL claim necessarily fails as well. (See Reply at 6:5-7.) Defendants reassert she lacks standing to assert her UCL claim on behalf of third parties. (See id., at 6:11-13.)

Because Plaintiff’s claims for statutory violations—human trafficking (Civil Code § 52.5; Penal Code § 236.1), sexual battery (Civil Code § 1708.5), and Unruh Civil Rights Act (Civil Code §§ 51, 52)—fail, Plaintiff has insufficiently alleged the unlawful prong.

Although the Court found above that Plaintiff’s fraud claim was insufficiently stated, the Court finds Plaintiff sufficiently alleges the fraud prong of her UCL claim. “A fraudulent business practice under section 17200 ‘is not based upon proof of the common law tort of deceit or deception, but is instead premised on whether the public is likely to be deceived.’” (Pastoria v. Nationwide Ins. (2003) 112 Cal.App.4th 1490, 1498.) Here, the Complaint alleges Defendants engaged in unfair and fraudulent business practices including luring egg donors, abandoning donors when medical issues arise, and “providing and/or marketing donor profiles that are incomplete, inaccurate, and designed to conceal disqualifying medical and mental-health histories...” (Compl., ¶ 139.) Plaintiff alleges these “practices are likely to deceive prospective parents and donors and to undermine the public’s interest in honest medical and reproductive health services.” (Id., ¶ 140.) Thus, Plaintiff sufficiently pleads a fraudulent practice.

However, Plaintiff’s UCL claim does not survive demurrer because she insufficiently alleges standing. Plaintiff alleges she suffered “physical injury, allergic reactions, exacerbated severe mental illness, emotional distress...” (Id., ¶¶ 77, 92, 126.) Plaintiff must have lost money or property to have standing to allege a UCL claim. (See Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 324.) Although Plaintiff alleges she was physically injured, she fails to allege she lost money or property because of the unfair or fraudulent business practices as required to state a UCL claim.

Thus, the Court SUSTAINS Defendants’ Demurrer to the ninth cause of action for unfair competition WITHOUT LEAVE TO AMEND.

V. MOTION TO STRIKE

A. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form, or in the procedures pursuant to which it was filed.” (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B. Analysis

As an initial matter, Defendants’ Motion to strike paragraphs or relief at items 8-16, 20, and 22-23 pertain to claims that did not survive demurrer, thus the Motion is moot as to these items. (See Notice of Motion at 3-4.) The Court will address the remaining items Defendants move to strike.

1. Punitive Damages

Pursuant to CCP § 425.13, “[i]n any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed.” (Code Civ. Proc. § 425.13.)

The Court GRANTS Defendants’ Motion as to the prayer for punitive damages identified at item 21. After sustaining Defendants’ demurrer to the causes of action above, only Plaintiff’s negligence claims remain, and Plaintiff has not sought leave to include a claim for punitive damages against Defendants.

2. Enhanced Damages under Civil Code § 3345

Civil Code § 3345 applies to actions brought by, on behalf of, or for the benefit of senior citizens or disabled persons to redress unfair or deceptive acts or practices or unfair methods of competition. (See Civ. Code § 3345(a).) “[T]rebled recovery may be awarded under Civil Code section 3345, subdivision (b) only if the statute under which recovery is sought permits a remedy that is in the nature of a penalty.” (Clark v. Superior Court (2010) 50 Cal.4th 605, 614.)

The Court GRANTS Defendants’ Motion as to the prayer for enhanced remedies identified at items 17-19. As Defendants argue, Plaintiff’s only claims that seek recovery for unfair or deceptive practices are her Unruh Act and UCL claims. Because these claims did not survive demurrer, there is no basis for trebled recovery pursuant to Civil Code § 3345. Moreover, the Supreme Court in Clark held that a UCL claim does not support recovery under Civil Code § 3345 because the only monetary remedy available under the UCL is restitution, and a claim for treble damages is not restitution, nor is the nature of restitution comparable to a penalty. (See Clark, 50 Cal.4th at 614-15.) Civil Code § 52(a) also does not permit a remedy that is in nature a penalty. (See Civil Code § 52(a) [remedy for violations of Civil Code § 51 is for actual damages, up to a maximum of three times the amount of actual damage, and any attorney’s fees].) The Court is unpersuaded by Plaintiff’s argument and reliance on unpublished authority that she can recover enhanced damages based on non-statutory claims, as Clark held otherwise. (See Opp. at 6:3-11.)

3. Allegations concerning prospective patients

The Court GRANTS the Motion as to items 1 (“and (ii) wealthy prospective parents unable to conceive without medical assistance”), 2 (“and (ii) prospective parents purchasing expensive IVF services with egg donor profiles that are incomplete,

inaccurate, and designed to conceal disqualifying medical and mental-health histories.”), 3-5, and 7. These allegations are not relevant to Plaintiff’s negligence claims which remain after the Court sustained Defendants’ demurrer to her other claims. Moreover, these allegations are irrelevant because Plaintiff does not assert any claims on the basis that she was a prospective parent.

The Court GRANTS in part Defendants’ Motion to Strike as to items: 1 (“and (ii) wealthy prospective parents unable to conceive without medical assistance”), 2 (“and (ii) prospective parents purchasing expensive IVF services with egg donor profiles that are incomplete, inaccurate, and designed to conceal disqualifying medical and mental-health histories.”), 3-5, 7, 17-19, and 21. The Motion is DENIED as moot as to items 8-16, 20, and 22-23.

VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS in part Defendants’ Demurrer to the first, fourth through seventh, and ninth causes of action WITH LEAVE TO AMEND. The Court OVERRULES it as to the third cause of action.

The Court GRANTS IN PART Defendants’ Motion to Strike WITH LEAVE TO AMEND as to items: 1 (“and (ii) wealthy prospective parents unable to conceive without medical assistance”), 2 (“and (ii) prospective parents purchasing expensive IVF services with egg donor profiles that are incomplete, inaccurate, and designed to conceal disqualifying medical and mental-health histories.”), 3-5, 7, 17-19, and 21. The Motion is DENIED as moot as to items 8-16, 20, and 22-23.

Plaintiff is ordered to file an amended pleading on or before July 24, 2026.

Should they fail to do so, Defendants have until August 10, 2026, to file an Answer only. Otherwise, the deadlines for Defendants to file a responsive pleading to an amended complaint established by the Code of Civil Procedure shall apply based on when Plaintiff files and serves her amended complaint.

IT IS SO ORDERED.

DATED: July 6, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.